

Rajesh Jaiswal v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 22 November 2023 · 2023:AHC:221290-DB · Writ-C No. 32843 of 2023 · **Writ disposed; clause 6.5 complaint to be decided in two months**

HEADNOTE

Writ against a recovery certificate disposed of on the Electricity Department's submission that a consumer aggrieved by the permanent-disconnection arrears bill may approach the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. If a billing complaint is filed, the appropriate authority must entertain it in accordance with law and decide it within two months, with coercive action stayed for that period or until the decision, whichever is earlier.

FACTUAL SUMMARY

Rajesh Jaiswal petitioned the Allahabad High Court stating that a recovery certificate had been issued against him without any basis. On 19 October 2023 the Division Bench directed the Electricity Department to produce the order supporting the certificate and restrained coercive action until the next listing. On 22 November 2023 departmental counsel produced a bill recording permanent disconnection on 7 March 2015 and arrears of Rs.3,47,469 as on that date. A copy of that bill was directed to be handed to the petitioner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing complaint to Executive Engineer

HOLDING

On the Department's submission that a consumer aggrieved by the bill may approach the concerned Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005, the writ was disposed of. If the petitioner files a billing complaint before the appropriate authority, that complaint shall be entertained in accordance with law and an appropriate order passed within two months. Coercive action shall not be taken for two months from 22 November 2023 or until the decision, whichever is earlier. ¶ 3-6

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The High Court did not adjudicate the recovery certificate or the Rs.3,47,469 arrears. It disposed of the writ so that a billing complaint, if filed, would be entertained and decided in accordance with law under the clause 6.5 route indicated by the Department. ¶ 3-6

clause-6.5-representation-executive-engineer Departmental counsel submitted that a consumer aggrieved by the permanent-disconnection bill may approach the concerned Executive Engineer under clause 6.5, and the Court proceeded on that submission by directing time-bound entertainment of a billing complaint. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE AND THE RS.3,47,469 ARREARS RECORDED ON PERMANENT DISCONNECTION DATED 7 MARCH 2015 WERE LAWFUL.

Left to a billing complaint before the appropriate authority, to be decided in accordance with law within two months. ¶ 1-4

